

HOUSE BILL 2294

By Hardaway

AN ACT to amend Tennessee Code Annotated, Title 4,
Chapter 3, Part 6; Title 4, Chapter 4; Title 39; Title
40 and Title 41, relative to correctional institutions.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 41, is amended by adding the following
as a new chapter:

41-5-101.

As used in this chapter:

(1) "Alien" means any person who is not a citizen or national of the
United States;

(2) "Correctional institution" means any facility under the authority of a
governmental entity that has the power to detain or restrain, or both, a person
under the laws of this state, including a penal institution as defined in § 39-16-
601. "Correctional institution" also includes such a facility operated by a prison
contractor as defined in § 41-24-102; and

(3) "Governmental entity":

(A) Means any political subdivision of this state ; and

(B) Includes the department of homeland security.

41-5-102.

(a) A governmental entity or prison contractor that operates a correctional
institution may not:

(1) Prevent any of the following persons from entering a correctional
institution used to house aliens, for the purpose of conducting oversight:

(A) A member of the United States congress;

(B) An employee of the United States house of representatives or the United States senate designated by a member of congress for the purposes of this section;

(C) A member of the house of representatives or a member of the senate; or

(D) An employee of the house of representatives or the senate designated by a member of either body for the purposes of this section; or

(2) Make any temporary modification at a correctional institution that alters what is observed by persons in subdivisions (a)(1)(A)-(D) who visit the institution for the purpose of conducting oversight, compared to what would be observed in the absence of such modification.

(b) This section does not require persons in subdivisions (a)(1)(A)-(D) to provide prior notice of the intent to enter a correctional institution:

(1) For the purpose of conducting oversight;

(2) Where riots have occurred; or

(3) That is the source of such threats as diseases, outbreaks, or epidemics.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.